

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

18. Esperanza Woolever v. Christopher Woolever

PFL20180325

Respondent filed a Request for Order (RFO) and Order Shortening Time (OST) on May 14, 2026. On May 15th, the court granted the OST and set the RFO for a hearing on May 21, 2026 at 1:30 PM in Department 5. The court directed Respondent to served Petitioner on May 15, 2026. The court directed Petitioner to file a Responsive Declaration on or before May 19, 2026.

Upon review of the court file, there is no Proof of Service showing Petitioner was properly served.

Petitioner filed a Responsive Declaration on May 19, 2026. It was served the same day. Petitioner does not raise the issue of service therefore, the court deems it to have been waived.

Respondent requests the court issue an order awarding the entirety of the CalSTRS account to Respondent as his sole and separate property in order to facilitate the court's prior orders awarding the child support arrears owed to Respondent by Petitioner to be paid from that account. Petitioner objects to the requested orders.

The court has read and considered the filings as outlined above. The court denies Respondent's request for the reasons outlined in Petitioner's Responsive Declaration. The orders requested are incongruent with the prior orders made by the court reserving on the final characterization of the funds as the parties dispute the date of separation.

All prior orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #18: THE COURT DENIES RESPONDENT'S REQUEST FOR THE REASONS OUTLINED IN PETITIONER'S RESPONSIVE DECLARATION. THE ORDERS REQUESTED ARE INCONGRUENT WITH THE PRIOR ORDERS MADE BY THE COURT RESERVING ON THE FINAL CHARACTERIZATION OF THE FUNDS AS THE PARTIES DISPUTE THE DATE OF SEPARATION.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION

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OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.